PURCHASE AND SALE AGREEMENT

BY AND BETWEEN

BSC RE OWNER LLC,

AS SELLER,

AND

TOWN OF WESTBOROUGH,

AS BUYER

Date: October 10, 2023

Property: 12 Union Street, Westborough, Massachusetts

PURCHASE AND SALE AGREEMENT

THIS PURCHASE AND SALE AGREEMENT (this "**Agreement**") is entered into as of this 10th day of October, 2023 (the "**Effective Date**"), by **BSC RE Owner LLC** ("**Seller**"), a Massachusetts limited liability company, having an address of 405 Cochituate Road, Suite 302, Framingham, MA 01701, and the **Town of Westborough** ("**Buyer**"), a Massachusetts municipal corporation acting by and through its Select Board, having an address of 34 West Main Street, Westborough, MA 01581.

In consideration of the mutual promises, covenants and agreements hereinafter set forth and of other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Seller and Buyer agree as follows:

ARTICLE I - Sale of Property

1.1 Sale of Property. Seller hereby agrees to sell, assign and convey to Buyer and Buyer agrees to purchase from Seller, a portion of the property located at 12 Union Street, Westborough, and described in deeds recorded with the Worcester South District Registry of Deeds in Book 68741, Page 363 and Book 68741, Page 373 (the "**Seller Property**"), which portion contains 2.58-acres and is shown as "Lot BSC" on a plan attached hereto as **Exhibit A**, attached hereto and incorporated herein (the "**Land**"), together with the building thereon known as "1500 Union" and all other improvements located thereon (the "**Improvements**"), together with the following (collectively, the "**Property**"):

(a) all right, title and interest of Seller (whether now or hereafter existing) in and to any land lying in the bed of any street, alley, road or avenue (whether open, closed or proposed) within, in front of, behind or otherwise adjoining the Land or any of it, and all right, title and interest of Seller (whether now or hereafter existing) in and to any award made or to be made as a result or in lieu of condemnation, and in and to any award for damage to the Property or any part thereof by reason of casualty (all of the foregoing being included within the term "Land"); and

(b) all buildings, structures, and improvements now or hereafter located on the Land and all the fixtures used in connection therewith including, if any, all wall-to-wall carpeting, drapery rods, blinds, window shades, screens, screen doors, storm windows and doors, awnings, shutters, furnaces, heaters, heating equipment, stoves, ranges, oil and gas burners and fixtures appurtenant thereto, hot water heaters, plumbing and bathroom fixtures, garbage disposers, electric and other lighting fixtures, fences, gates, trees, shrubs, plants, built-in refrigerator, ventilators, and dishwashers, and all other personal property of Seller located thereon; and

(c) all right, title and interest of Seller in and to all existing surveys, blue prints, construction drawings, plans and specifications, transferable warranties and guaranties and other documentation for or with respect to the construction or operation of the Property or any part thereof; all right, title and interest of Seller in and to all transferable licenses, permits, approvals or other like instruments applicable to the construction, operation, use or enjoyment of the Property.

ARTICLE II - Purchase Price

The purchase price for the Property shall be Eight Million Eight Hundred Thousand Dollars ($8,800,000.00) (the "**Purchase Price**"), which shall be paid to Seller, as adjusted by all prorations as provided for herein, at the Closing by wire transfer of immediately available federal funds.

ARTICLE III - Title Company

Marsh, Moriarty, Ontell & Golder, P.C. (the "**Title Company**") is executing this Agreement to acknowledge Title Company's responsibilities and rights hereunder. Any amendment to this Agreement which alters the Title Company's responsibilities and/or rights hereunder not executed by the Title Company shall be effective as to the Parties thereto, but shall not be binding upon the Title Company. The Title Company shall accept any funds deposited into escrow with the Title Company pursuant to this Agreement with the understanding of the Parties that the Title Company is not a party to this Agreement except to the extent of its specific responsibilities and rights hereunder and does not assume or have any liability for the performance or non-performance of Buyer or Seller hereunder. Additional provisions with respect to the Title Company are set forth in Section 15.16 and **Exhibit D**.

ARTICLE IV - Closing, Prorations and Closing Costs

4.1 Closing. The closing of the purchase and sale of the Property shall occur ten (10) business days following Seller's written notice to Buyer of the Tenant Vacating Date (as hereinafter defined) and the satisfaction of the Closing Conditions (as the same may be advanced or extended in accordance with this Agreement, the "**Closing Date**"); provided, however, the Closing Date shall not occur prior to January 3, 2024. It is anticipated the Tenant Vacating Date will occur not later than March 15, 2024, provided, however, if the Closing Date does not occur by March 15, 2024 based upon a failure the Tenant Vacating Date condition to have occurred, Seller, upon written notice to Buyer given on or before March 15, 2024, shall have the right to further extend the Closing Date to a later date designated by Seller upon five (5) business days' notice to the Town once the Tenant Vacating Date is achieved. In the event that the Tenant Vacating Date does not occur by July 1, 2024, Buyer shall have the right, in its sole and absolute discretion, to terminate the PSA, without recourse. The Parties shall not conduct an "in person" Closing. Rather, the Closing shall be held through escrow, with each Party delivering all closing documents to the offices of the Title Company, or at such other place agreed to by Seller and Buyer. "**Closing**" shall be deemed to have occurred when Title Company has been instructed by both Parties to record the Deed (as hereinafter defined) and the Deed has been recorded and the Purchase Price, as adjusted, has been paid to the Seller forthwith following the recording of the Deed. Time is hereby made of the essence.

4.2. Prorations. All matters involving prorations or adjustments to be made in connection with Closing and not specifically provided for in some other provision of this Agreement shall be adjusted in accordance with this Section 4.2. Except as otherwise set forth herein, all items to be prorated pursuant to this Section 4.2 shall be prorated as of midnight of the day immediately preceding the Closing Date, with Buyer to be treated as the owner of the

Property, for purposes of prorations of income and expenses, on and after the Closing Date. The provisions of this Section 4.2 shall survive the Closing.

(a) Taxes. Real estate taxes shall be prorated as of the Closing Date, provided, however, that if Seller has paid taxes past the Closing Date, Buyer, being tax-exempt and having no obligation to pay real estate taxes, shall have no obligation to repay or reimburse Seller for the same. Seller shall pay all special assessments, if any, attributable to the Property in full as of the Closing Date, whether or not the same is being paid in installments. If the amount of said taxes is not known at the time of the delivery of the deed, they shall be apportioned on the basis of the taxes assessed for the preceding year, with a reapportionment as soon as the new tax rate and valuation can be ascertained.

(b) Insurance. There shall be no proration of Seller's insurance premiums or assignment of Seller's insurance policies. Buyer shall obtain any insurance coverage deemed necessary or appropriate by Buyer.

(c) Utilities. Water and sewer charges, if any, and all other utilities serving the Property shall be adjusted as of the Closing Date.

(d) Calculations. For purposes of calculating prorations, Buyer shall be deemed to be in title to the Property and responsible for the expenses thereof for the entire day upon which the Closing occurs. All such prorations shall be made on the basis of the actual number of days of the month which shall have elapsed as of the day of the Closing and based upon the actual number of days in the month and a three hundred sixty-five (365) day year.

4.3. Closing Costs. Seller shall pay (a) the fees of any counsel representing Seller in connection with this transaction, (b) one-half of the fees charged by the Escrow Agent, (c) all State, County and local transfer taxes and fees payable upon the transfer of the Property to Buyer, if applicable; and (d) the cost of any plans required to convey the Property, if any. Buyer shall pay (i) the fees of any counsel representing Buyer in connection with this transaction; (ii) the cost of Buyer's title policy (the "**Title Policy**"); (iii) the fees for recording the Deed, and (iv) one-half of the fees charged by the Escrow Agent. Any other costs or expenses incident to this transaction and the closing thereof not expressly provided for above shall be allocated between and paid by the Parties in accordance with custom and practice in the Commonwealth of Massachusetts, and to the extent applicable, the Real Estate Bar Association.

The provisions of this Article IV shall survive the Closing.

ARTICLE V - Buyer's Right of Inspection; Inspection Period

5.1. Property Inspections. From the Effective Date and ending on November 30, 2023 (the "**Property Inspection Period**"), Buyer and its agents shall have the right to enter upon the Property, including the interior of any buildings and other Improvements located thereon, from time to time to conduct such inspections and other investigations as Buyer deems advisable (the "**Inspections**"). Buyer understands and agrees that any on-site inspections of the Premises shall be conducted upon at least twenty-four (24) hours' prior notice to Seller (which may be given by contacting Peter C. Engeian, Vice President of Property Management with Grossman

Development Group at (617) 592-4426 (phone) or by email: peter@grossmanre.com), and Seller or its representative may accompany Town and/or its agents and consultants on any such inspection (but Seller's inability to make its personnel available shall not require the delay or rescheduling of any such inspection). Buyer or its designees entering the Property on Buyer's behalf shall: (a) maintain comprehensive general liability (occurrence) insurance (at least $2,000,000), and deliver a certificate of insurance, which names Seller as an additional insured thereunder, verifying such coverage to Seller promptly upon Seller's request; and (b) promptly pay when due the costs related to the inspections and examinations done with regard to the Property so that no liens are imposed on the Property or any part thereof to secure payment of the work by or on behalf of Buyer. After its Inspections are completed, Buyer shall restore the Property, at its sole cost and expense, to substantially the same condition as it existed immediately prior to Buyer's inspections, to the extent reasonably practicable. All inspections shall be conducted so as not to interfere unreasonably with use of the Property by Seller or its tenants. Notwithstanding the foregoing, Buyer shall not have the right to perform any invasive, subsurface or destructive testing (any, a "**Subsurface Test**") at the Property absent Seller's prior written consent, which consent Seller may grant or deny in its discretion based upon the nature and scope of such invasive testing. In conjunction with any such request for consent, Buyer or its consultants shall provide a scope of work with respect to such testing, and Seller shall exercise commercial reasonableness in reviewing such scope of work in conjunction with such request. To the extent Buyer elects to proceed with this transaction and not exercise the termination rights set forth in Sections 5.3 or 5.4, and subject to satisfaction of the Closing Conditions, the Town shall otherwise be purchasing the Premises in its "as is" condition without warranty by Seller of its condition, express or implied.

5.2. Inspection Obligations. Buyer agrees that it will: (a) not unreasonably interfere with Seller's use or any tenant's use of the Property; (b) not damage any part of the Property or any personal property owned or held by Seller; and (c) not permit any liens to attach to the Property by reason of the exercise of its rights hereunder. Buyer shall, to the extent permitted by law, hold harmless Seller, agents and successors and assigns harmless from and against claims, damages, losses, costs and for personal injury or property damage caused by Buyer or its agents, employees or contractors (collectively, with Buyer, the "**Buyer Parties**") in the exercise of the inspection rights granted pursuant to Section 5.1; provided, however, in no event shall Buyer be liable for any diminution in value of the Property or for any other cost, expense, or liability resulting from the discovery of any pre-existing conditions (including, without limitation, any Hazardous Materials) on or under the Property, or be obligated to defend, indemnify or hold harmless any of the above-named indemnitees for their own negligence or willful misconduct. This Section 5.2 shall survive the Closing and/or any termination of this Agreement. "**Hazardous Material**" shall mean, but shall not be limited to, any oil, petroleum product and any hazardous or toxic waste or substance, any substance which because of its quantitative concentration, chemical, radioactive, flammable, explosive, infectious or other characteristics, constitutes or may reasonably be expected to constitute or contribute to a danger or hazard to public health, safety or welfare or to the environment, that are covered by or regulated pursuant to any federal, state, or local law, rule or regulation, code or by-law (whether now existing or hereafter promulgated, as they may be amended from time to time) pertaining to environmental regulations, contamination, clean-up or disclosures, and any judicial or administrative interpretation thereof, without limitation, the Comprehensive Environmental Response, Compensation and Liability Act of 1980, 42 U.S.C. §§ 9601 et seq. and the Massachusetts

Hazardous Waste Management Act, MGL c. 21C §§ 1 et seq.; the Massachusetts Oil and Hazardous Material Release Prevention and Response Act, MGL c. 21E §§ 1 et seq. (any and all, the "**Environmental Laws**").

5.3. Termination Rights.

(a) Initial Termination Notice. If Buyer is not satisfied with the condition of the Property or the Improvements thereon, in Buyer's sole and absolute discretion, Buyer may, at any time on or before 5:00 p.m. EST on the last date of the Property Inspection Period (the "**Property Inspection Deadline**"), send Seller written notice of its objections to the Property and/or the Improvements thereon (the "**Property Objection Notice**"). Buyer's failure to send the Property Objection Notice by the Property Inspection Deadline shall be deemed to constitute Buyer's acceptance of the condition of the Property and the Improvements thereon (subject to the provisions of subsection (b) below), in which case the Parties shall proceed to Closing, without adjustment of the Purchase Price based on the condition of the Property and/or the Improvements as of the Property Inspection Deadline. If Buyer has provided Seller with the Property Objection Notice, Seller may elect, in its sole and absolute discretion, by written notice given to Buyer within fifteen (15) days of receipt of the Property Objection Notice (the "**Seller Response Period**"), to inform Buyer in writing whether (x) Seller intends to cure the items listed in the Property Objection Notice to Buyer's reasonable satisfaction (the "**Seller Cure Notice**"), or (y) Seller elects to terminate this Agreement (the "**Seller Termination Notice**"). Seller's failure to send any notice to Buyer with the Seller Response Period shall be deemed to constitute Seller's election to cure the items in the Property Objection Notice. If Seller timely sends the Seller Termination Notice, Buyer shall have the right, but not the obligation, to inform Seller in writing, within fifteen (15) days of receipt of the Seller Termination Notice (the "**Buyer Response Period**"), whether it shall proceed to the Closing (the "**Notice to Proceed**"), without adjustment of the Purchase Price on account of the condition of the Property and the Improvements as of the Property Inspection Deadline, in which case the Parties shall proceed to the Closing (subject to the provisions of subsection (b) below). Buyer's failure to timely respond to the Seller Termination Notice within the Buyer's Response Period shall be deemed to constitute Buyer's election not to proceed to Closing, and this Agreement shall terminate. In the event this Agreement is terminated pursuant to the provisions hereof or subsection (b) below, neither Party shall have any further rights or obligations to the other hereunder other than the Surviving Obligations, if any.

(b) Second Termination Notice. Buyer may, at or prior to the Closing, notify Seller in writing of any new property condition or damage to the Improvements occurring or arising after the Property Inspection Deadline (the "**Second Objection Letter**"). With respect to any such objections as to the condition of the Property and/or the Improvements, Seller shall have the same option to elect to either cure the defects set forth in the Second Objection Letter or terminate this Agreement and, if Seller sends written notice of its election to terminate and thus election not to cure any of the same on or before the date that is ten (10) days after Seller's receipt of Buyer's Second Objection Letter, Buyer shall have the same option to proceed to Closing and accept the Property in such condition as Seller can deliver or to terminate this Agreement as set forth in subsection (a) (that is, for the purpose of clarity, Buyer shall have fifteen (15) days from the receipt of Seller's notice to inform Seller if Buyer will proceed to closing). Seller's failure to respond timely to the Second Objection Letter shall be deemed to constitute Seller's election to cure the items in the Second Objection Notice, and Buyer's failure to timely respond to Seller's response shall constitute shall be deemed to constitute Buyer's election not to proceed to Closing, and this Agreement shall terminate. If Buyer timely sends the Second Objection Letter and Seller elects to cure or is deemed to elect to cure, the Closing shall be extended set forth more particularly in subsection (c).

(c) Extensions. Notwithstanding anything to the contrary herein, Seller shall have the right to extend the Closing Date by up to sixty (60) days for purposes of curing (or attempting to cure) the items on the Property Objection Notice that Seller has elected to cure or otherwise fulfilling (or attempting to fulfill) its obligations hereunder, and during such extended time Seller shall continue using good faith efforts to effectuate such cure.

5.4. Seller Deliveries. Seller agrees to deliver to Buyer all of the items specified on **Exhibit B** attached hereto (the "**Documents**"), within five (5) business days after the Effective Date to the extent such items are in Seller's possession or under its reasonable control. Seller makes no representations or warranties of any kind regarding the accuracy or completeness of the information contained in the Documents, if any, relating to the Property, provided, however, that Seller represents and warrants it has no actual knowledge that the same are materially incomplete, inaccurate or untrue. Further, if Seller has not delivered to Buyer any of the Documents within such five (5) business day period, it will constitute Seller's deemed representation and warranty that, to Seller's knowledge, Seller does not have such Documents within its possession or under its reasonable control. Seller has no obligation to deliver or make available to Buyer Seller's internal memoranda, attorney-client privileged materials, internal appraisals, or economic evaluations of the Property. Buyer shall return all of the Documents or certify that it has destroyed all the documents, on or before three (3) business days after the first to occur of (a) such time as Buyer notifies Seller in writing, in accordance with the terms and conditions of this Agreement, that it shall not acquire the Property, or (b) such time as this Agreement is terminated in accordance with its terms and conditions. Section 5.4 shall survive any termination of this Agreement.

5.5. Independent Examination. Buyer hereby acknowledges that, except as provided in Section 7.1, Buyer is relying upon its own independent examination of the Property and all matters relating thereto and not upon the Documents and/or any statements of Seller or of any officer, director, employee, agent, broker, manager, or attorney of Seller with respect to acquiring the Property. Seller shall not be deemed to have represented or warranted the completeness or accuracy of any Documents heretofore or hereafter furnished to Buyer (but nothing in the foregoing limits the terms of Section 5.4). The provisions of this Section 5.5 shall survive Closing and/or termination of this Agreement.

ARTICLE VI - Title and Survey Matters

6.1. Title.

(a) Title Commitment, Objections. It shall be a condition to Buyer's obligation to close that title to the Property shall be good, insurable and marketable, subject only to the Permitted Exceptions. Buyer shall obtain, at Buyer's expense, from the Title Company, an ALTA owner's title insurance commitment (the "**Commitment**") covering the Property, Seller shall, at Seller's expense and no later than October 22, 2023, deliver to Buyer, for Buyer's approval, a survey plan of the Property suitable for recording (the "**Survey**"). If Buyer objects to the title to the Property (including any objections based on lack of access to a public way), or to Survey matters, Buyer shall, no later than midnight on November 7, 2023 (the "**Title Inspection Deadline**"), send Seller copies of the Commitment, copies of any title exception documents, and a letter in writing specifying those title matters identified in the Commitment or on the Survey which Buyer disapproves of (the "**Title/Survey Objections**"). Buyer's failure to send the Title/Survey Objections prior to the Title Inspection Deadline shall be deemed to constitute Buyer's acceptance of the title matters set forth in the Commitment and/or the Survey, as the case may be (but nothing shall prevent Buyer from objecting to title matters arising on or after the date of the Commitment and/or the Survey, as set forth in subsection (d)). Notwithstanding anything herein to the contrary. Seller shall use good faith and diligent efforts to Remove (defined below) the Title/Survey Objections by the Closing Date (and shall be obligated to cure the Voluntary Liens, defined below), and Seller may, if necessary, extend the Closing Date for a sixty (60) day period (as set forth in Section 6.3) to enable Seller to Remove said objections, and Removal of same shall be a condition to Buyer's obligation to close.

(b) Termination Rights. If Seller fails to Remove the Title/Survey Objections by the Closing Date or the extended Closing Date, as the case may be, Buyer shall the right, to be exercised in its sole and absolute discretion, to send Seller either (x) a written notice, terminating this Agreement (the "**Buyer Termination Notice**"), whereupon this Agreement shall have no further force and effect and all rights and obligations of the Parties hereunder shall cease (except for the Surviving Termination Obligations, if any), or (y) a Notice to Proceed, whereupon the Parties shall proceed with the Closing without any reduction of the Purchases Price, provided that Buyer sends the Notice to Proceed or the Buyer Termination Notice within thirty (30) days from the Closing Date or the extended Closing Date, as the case may be. "**Remove**", "**Removed**" and "**Removal**", with respect to any exception to title, shall mean that Seller causes the Title Company to remove or omit the same from Buyer's Title Policy.

(c) Permitted Exceptions. Buyer and Seller hereby agree that "**Permitted Exceptions**" shall mean the following (in addition to the matters set forth above, to which Buyer is not allowed to object): (1) any exception, exclusion from coverage or other matter shown in the Commitment or the Survey, only to the extent that the matter was not identified in writing to Seller as a Title/Survey Objection within said applicable time period, or (2) any title or survey matter that is set forth in Buyer's Title/Survey Objections that Seller has not Removed despite good faith efforts by the Closing and yet Buyer elects to go forward with the transaction (without a reduction in Purchase Price, as discussed above, but, to be clear, in all events Seller must Remove Voluntary Liens, defined below).

(d) Second Termination Rights. Notwithstanding the foregoing, Buyer shall have the right to notify Seller in writing on or prior to the Closing Date of any additional objections to any title matters first disclosed on an update to the Commitment, including, without limitations, those matters set forth in Section 10.2(h) (the "**Second Objection Letter**"). With respect to any such objections to title set forth in such Second Objection Letter, Seller shall use good faith and diligent efforts to Remove such objections within a sixty (60)-day period of time (as set forth in Section 6.3), failing which Buyer shall have the same option to proceed to Closing and accept title subject to such objections or to terminate this Agreement as those objections made by Buyer in said Second Objection Letter.

6.2. **Voluntary Liens**. Notwithstanding anything herein to the contrary, at or prior to the Closing, Seller shall be obligated to pay off, discharge or otherwise remove at its sole cost and expense, any and all mortgages and monetary liens granted by written instrument executed by Seller that encumber the Property, regardless of whether or not Buyer has objected to such liens pursuant to this Section 6.1 ("**Voluntary Liens**"). Seller may, at the time of delivery of the deed, use the purchase money or any portion thereof to clear the title of any or all encumbrances or interests, provided that all instruments so procured are recorded simultaneously with the delivery of said deed, or, for institutional mortgages only, within a reasonable time thereafter in accordance with customary Massachusetts conveyancing practices.

6.3. **Extension**. Notwithstanding anything to the contrary herein, Seller shall have the right to adjourn the Closing Date by up to sixty (60) days for purposes of Removing (or attempting to Remove) any Title/Survey Objection that Seller has elected to Remove or otherwise fulfilling (or attempting to fulfill) its obligations under this Section 6.1, and during such extended time Seller shall continue using good faith efforts to effectuate such Removal.

6.4. **REA**. Buyer and Seller acknowledge that (i) the Property is being subdivided from the Seller Property presently being operated as a retail shopping center d/b/a "Bay State Commons, (ii) certain existing areas on the Property are presently designated as common areas and parking fields serving the Seller Property and maintained by the Seller, and (iii) following the Closing Date, a written agreement between Seller and Buyer will be required to provide for continuing rights of Seller (and its tenants) to use portions of the Property for parking and for Seller's continuing common area maintenance obligations (and Buyer's obligation to pay its pro rata share of such costs). Therefore, the parties agree that as a condition precedent to Seller's performance hereunder that the Buyer and Seller shall have entered into a Reciprocal Easement Agreement addressing such matters in form and substance acceptable to both parties, in each party's sole and absolute discretion (the "**REA**"). Buyer and Seller shall negotiate the terms and conditions of the REA no later than November 1, 2023.

ARTICLE VII - Representations and Warranties of the Seller

7.1. Seller's Representations. Seller represents and warrants to Buyer that the following matters are true and correct as of the Effective Date and Seller shall recertify these representations and warranties as of the Closing Date by virtue of its delivery of the Seller's Bring-Down Certificate (defined below in this Agreement).

(a) Seller is a limited liability company, duly organized, validly existing and in good standing under the laws of the Commonwealth of Massachusetts and, to the extent necessary, is qualified to conduct business in the Commonwealth of Massachusetts.

(b) Seller is the sole owner of the Property and it has not granted any rights of first refusal or rights of first or last offer, or options, or other pre-emptive rights that would adversely affect Buyer's ability to consummate the transaction provided in this Agreement or be binding on Buyer following the Closing.

(c) There are no tenants or occupants of the Property and no leases, licenses or occupancy agreements affecting the Property, with the exception of the lease agreement entered into with Boston Sports Club (the "**BSC Lease**") which lease is scheduled to terminate on February 29, 2024. The date on which the tenant under the BSC Lease vacates the Property is defined as the "**Tenant Vacating Date**";

(d) Seller represents and warrants to the best of its knowledge that Buyer shall not be subject to any indemnification and/or other obligations assumed by Seller with the sole exception of (i) any obligations arising under that certain Notice of Activity and Use Limitation dated April 25, 2023 (the "**AUL**") as recorded in the Worcester County Registry of Deeds (the "**Registry**") in Book 69057, Page 87, and (ii) those certain obligations set forth in that certain Environmental Assumption and Indemnification Agreement entered into on January 19, 2023, as evidenced by a Memorandum of Indemnification Agreement recorded with the Registry in Book 68741, Page 232 (the "**Prior Owner Parties Indemnity Agreement**"), to the extent permitted by law. With respect to such surviving indemnification obligations under the Prior Owner Parties Indemnity Agreement, Buyer and Seller agree that, at the closing, the following shall be required deliverables as a condition precedent to the parties' performance under this Agreement: (i) an endorsement to be issued under Seller's environmental insurance policy with Great American Insurance Group (the "**Existing Environmental Policy**") designating Buyer as an additional insured on that policy providing for contractual indemnification of Buyer with respect to any claims made under the Prior Owner Parties Indemnity Agreement during the term of such policy, and (ii) Seller and Buyer shall have entered into a separate Environmental Indemnification Agreement dated as of the Closing Date, in form and substance satisfactory to the Town and Seller, in their sole and absolute discretion (the "**Town Indemnity Agreement**"), whereby the Seller, as indemnitor, shall indemnify, defend and hold harmless Buyer, as indemnitee, which respect to any and all "Claims" (as defined under the Prior Owner Parties Indemnity Agreement) made against Buyer by any one or more of the designated "Indemnitees" under the Prior Owner Parties Indemnity Agreement, subject to an exclusion for any "**Excluded Claim**" to be more fully defined under the Town Indemnity Agreement, being claims arising from post-closing release or discharge of Hazardous Materials solely caused by the acts or omissions of Buyer and/or its agents, employees, or contractors (including Buyer, the "**Buyer Parties**") in or on the Property or other portion of the Seller Property or exacerbation of any existing environmental condition by the Buyer Parties (i.e. any violation of the AUL by any of the Buyer Parties) with respect to the Property or the Seller Property. The Seller Property, excepting the Property, is referred to as the "**Remaining Property**." The obligations of Seller under the Town Indemnity Agreement shall "run with the land" with respect to the Remaining Property and bind Seller's successors and/or assigns, and shall run with the Property and benefit Buyer's successors and assigns. Buyer and Seller shall negotiate the terms and conditions of the Town Indemnity Agreement no later than October 13, 2023. Seller further agrees, with respect to the Existing Environmental Policy: (x) that, in the event following its stated expiration in 2030, the term of this policy is extended or a new replacement policy is procured by Seller, the Seller shall procure a similar endorsement designating the Town as an additional insured party which shall continue to provide contractual indemnification in favor of the Town with respect to any Claims under the Prior Owner Parties Indemnity Agreement during the term of such policy, and (y) in the event the existing policy is not extended and a new policy is not procured upon its current expiration date in 2030 (based upon the reasonable determination of the Seller that any renewal terms or terms of a new policy are not commercially reasonable), that the parties will confer in good faith with respect to same. In conjunction with the closing, Seller and Town agree that a short form notice of the Town Indemnity Agreement shall be recorded with the Registry immediately following recordation of the quitclaim deed conveying the Premises to the Town in form and substance mutually agreeable to the parties (to be agreed upon by October 13, 2023 and attached to the Town Indemnity Agreement as an exhibit) but providing general notice in the land records of this continuing and perpetual post-closing indemnity obligation of Seller and its successor and/or assigns in favor of the Town and its successors and assigns. Notwithstanding anything int this Agreement to the contrary, the provisions of <u>Section 7.1(d)(x) and (y)</u> shall survive the Closing Date.

(e) This Agreement has been duly authorized, executed and delivered by Seller, is the legal, valid and binding obligation of Seller, and no person whose consent is required for Seller's execution of this Agreement or for Seller to fulfill its obligations hereunder is under any legal disability that will adversely affect the enforceability of this Agreement.

(f) This Agreement does not, to Seller’s actual knowledge, violate any provision of any agreement or judicial order to which Seller is a party or to which Seller is subject.

(g) No petition in bankruptcy (voluntary or otherwise), assignment for the benefit of creditors, or petition seeking reorganization or arrangement or other action under Federal or State bankruptcy laws is pending against or contemplated by Seller.

(h) All documents to be executed by Seller which are to be delivered at Closing, will, at the time of Closing, (a) be duly authorized, executed and delivered by Seller (it being acknowledged that a deed signed under a power of attorney will not be satisfactory), (b) be legal, valid and binding obligations of Seller, and (c) not violate, to Seller’s actual knowledge, any provision of any agreement or judicial order to which Seller is a party or to which Seller is subject.

(i) Seller has not entered into any leases, licenses, or other occupancy agreements which would be binding on Buyer after Closing.

(j) Seller has not received written or oral notice that any investigation, action or proceeding is pending or threatened, which (i) questions the validity of this Agreement or any action taken or to be taken pursuant hereto, or (ii) involves condemnation or eminent domain proceedings against the Property or any material portion thereof.

(k) Seller has not received any written notice from any governmental authority alleging that the Property is in violation of any applicable law which violation remains uncured.

(l) Seller is not a “foreign person” within the meaning of Section 1445 of the United States Revenue Code of 1986, as amended, and the regulations promulgated thereunder.

(m) There is no legal action, suit or other legal or administrative proceeding pending before any court or administrative agency relating to the Property, and, to Seller's knowledge, there is no threatened legal action, suit or other legal or administrative proceeding relating to the Property or relating to Seller and which, in each case, could affect Seller's ability to perform its obligations under this Agreement.

(n) Seller represents and warrants that, until the date that is the earlier to occur of (a) the termination of this Agreement in accordance with the terms hereof, or (b) the closing date, Seller shall not convey any portion of the Property (other than the Sale Property) unless, as part of the sale, the purchaser expressly agrees to agrees to bound by and the terms of the Town Indemnification Agreement are included in the deeds to the purchasers, so that the obligations that Seller owes to Buyer under said Town Indemnification Agreement pass on to and are assumed by the purchasers.

7.3. Changes in Representations/Waiver. Seller will promptly notify Buyer of any material change in facts (or discovery of facts which Seller did not know existed as of the effective date of this Agreement) which arise after the Effective Date hereof and prior to the Closing which make Seller unable to recertify (via the Seller Bring-Down Certificate) such representations and warranties as of the Closing (including, a recertification of a representation or warranty that is to Seller's knowledge, because now Seller does have contrary knowledge), and unless Seller shall rectify the cause of such change or otherwise cure the adverse effect of such change by the original or extended time for Closing hereunder, Buyer shall have the option of terminating this Agreement by notifying the Seller thereof in writing on or prior to the Closing, in which event this Agreement shall be null and void and without recourse to the Parties hereto except for the Surviving Termination Obligations, if any. Seller may elect to extend the Closing for up to sixty (60) additional days to use its commercially reasonably efforts to resolve any such matter.

7.4. Survival. All covenants, obligations, representations and warranties and indemnities by the Seller are intended to and shall remain true and correct as of the Closing, shall be deemed to be material, and shall survive the recordation of the Deed for a period of twelve (12) months (the "**Survival Period**"). Any covenants and conditions herein that must be operative after recordation of the Deed to be effective shall be so operative and shall not be deemed to have been merged in the Deed and shall survive the Closing.

7.5 Limitation on Liability. Without limiting Buyer's specific performance and/or damage remedy under Section 13.1, Seller's aggregate liability to Buyer under this Agreement after the Closing as a result of a breach of representation or warranty or any other covenant or indemnity made by Seller shall in no event collectively exceed Five Hundred Thousand Dollars ($500,000), in the aggregate.

7.6 AS-IS. EXCEPT AS EXPRESSLY PROVIDED IN THIS AGREEMENT AND/OR ANY DOCUMENTS OR AGREEMENTS DELIVERED AT CLOSING, SELLER MAKES NO REPRESENTATIONS OR WARRANTIES, AND BUYER HEREBY ACKNOWLEDGES THAT NO REPRESENTATIONS HAVE BEEN MADE. EXCEPT AS EXPRESSLY PROVIDED IN THIS AGREEMENT AND/OR THE DOCUMENTS DELIVERED AT CLOSING, SELLER SPECIFICALLY DISCLAIMS,

AND NEITHER IT NOR ANY OTHER PERSON IS MAKING, ANY REPRESENTATION, WARRANTY OR ASSURANCE WHATSOEVER TO BUYER AND NO WARRANTIES OR REPRESENTATIONS OF ANY KIND OR CHARACTER, EITHER EXPRESS OR IMPLIED, ARE MADE BY SELLER OR RELIED UPON BY BUYER WITH RESPECT TO THE STATUS OF TITLE TO OR THE MAINTENANCE, REPAIR, CONDITION, DESIGN OR MARKETABILITY OF THE PROPERTY, OR ANY PORTION THEREOF, INCLUDING BUT NOT LIMITED TO (A) ANY IMPLIED OR EXPRESS WARRANTY OF MERCHANTABILITY, (B) ANY IMPLIED OR EXPRESS WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE, (C) ANY IMPLIED OR EXPRESS WARRANTY OF CONFORMITY TO MODELS OR SAMPLES OF MATERIALS, (D) ANY RIGHTS OF BUYER UNDER APPROPRIATE STATUTES TO CLAIM DIMINUTION OF CONSIDERATION, (E) ANY CLAIM BY BUYER FOR DAMAGES BECAUSE OF DEFECTS, WHETHER KNOWN OR UNKNOWN, LATENT OR PATENT, WITH RESPECT TO THE PROPERTY, (F) THE FINANCIAL CONDITION OR PROSPECTS OF THE PROPERTY AND (G) THE COMPLIANCE OR LACK THEREOF OF THE PROPERTY OR THE IMPROVEMENTS WITH GOVERNMENTAL REGULATIONS, IT BEING THE EXPRESS INTENTION OF SELLER AND BUYER THAT, EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT AND THE DOCUMENTS TO BE DELIVERED AT THE CLOSING, THE PROPERTY WILL BE CONVEYED AND TRANSFERRED TO BUYER IN ITS PRESENT CONDITION AND STATE OF REPAIR, ”AS IS“ AND "WHERE IS", WITH ALL FAULTS. BUYER REPRESENTS THAT IT IS RELYING SOLELY ON ITS OWN EXPERTISE AND THAT OF BUYER'S CONSULTANTS IN PURCHASING THE PROPERTY. EXCEPT FOR SELLER’S REPRESENTATIONS AND WARRANTIES CONTAINED IN THIS AGREEMENT, BUYER ACKNOWLEDGES AND AGREES THAT IT WILL HAVE THE OPPORTUNITY TO CONDUCT SUCH INSPECTIONS, INVESTIGATIONS AND OTHER INDEPENDENT EXAMINATIONS OF THE PROPERTY AND RELATED MATTERS, INCLUDING BUT NOT LIMITED TO THE PHYSICAL AND ENVIRONMENTAL CONDITIONS OF THE PROPERTY AND WILL RELY UPON SAME AND NOT UPON ANY STATEMENTS OF SELLER OR OF ANY MEMBER, MANAGER, OFFICER, DIRECTOR, AGENT OR ATTORNEY OF SELLER. BUYER ACKNOWLEDGES THAT ALL INFORMATION OBTAINED BY BUYER WILL BE OBTAINED FROM A VARIETY OF SOURCES AND, EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, SELLER WILL NOT BE DEEMED TO HAVE REPRESENTED OR WARRANTED THE COMPLETENESS, ADEQUACY, TRUTH OR ACCURACY OF ANY OF THE DUE DILIGENCE ITEMS OR OTHER SUCH INFORMATION HERETOFORE OR HEREAFTER FURNISHED TO BUYER. UPON CLOSING, BUYER ACKNOWLEDGES THE RISK THAT ADVERSE MATTERS, INCLUDING, BUT NOT LIMITED TO, ADVERSE PHYSICAL AND ENVIRONMENTAL CONDITIONS, MAY NOT HAVE BEEN REVEALED BY BUYER'S INSPECTIONS AND INVESTIGATIONS. BUYER ACKNOWLEDGES AND AGREES THAT UPON CLOSING, EXCEPT AS OTHERWISE EXPRESSLY SET FORTH IN THIS AGREEMENT AND DOCUMENTS DELIVERED AT CLOSING, SELLER WILL SELL AND CONVEY TO BUYER, AND BUYER WILL ACCEPT THE PROPERTY, "AS IS, WHERE IS," WITH ALL FAULTS. BUYER FURTHER ACKNOWLEDGES AND AGREES THAT THERE ARE NO ORAL AGREEMENTS, WARRANTIES OR

REPRESENTATIONS, COLLATERAL TO OR AFFECTING THE PROPERTY, BY SELLER, ANY AGENT OF SELLER OR ANY THIRD PARTY. SELLER IS NOT LIABLE OR BOUND IN ANY MANNER BY ANY ORAL OR WRITTEN STATEMENTS, REPRESENTATIONS OR INFORMATION PERTAINING TO THE PROPERTY FURNISHED BY ANY AGENT, EMPLOYEE, SERVANT OR OTHER PERSON, UNLESS THE SAME ARE SPECIFICALLY SET FORTH OR REFERRED TO IN THIS AGREEMENT. BUYER ACKNOWLEDGES THAT THE PURCHASE PRICE REFLECT THE "AS IS, WHERE IS" NATURE OF THIS SALE AND ANY FAULTS, LIABILITIES, DEFECTS OR OTHER ADVERSE MATTERS THAT MAY BE ASSOCIATED WITH THE PROPERTY. BUYER, WITH BUYER'S COUNSEL, HAS FULLY REVIEWED THE DISCLAIMERS AND WAIVERS SET FORTH IN THIS AGREEMENT, AND UNDERSTANDS THE SIGNIFICANCE AND EFFECT THEREOF. BUYER ACKNOWLEDGES AND AGREES THAT THE DISCLAIMERS AND OTHER AGREEMENTS SET FORTH HEREIN ARE AN INTEGRAL PART OF THIS AGREEMENT, AND THAT SELLER WOULD NOT HAVE AGREED TO SELL THE PROPERTY TO BUYER FOR THE PURCHASE PRICE WITHOUT THE DISCLAIMER AND OTHER AGREEMENTS SET FORTH IN THIS AGREEMENT. THE TERMS AND CONDITIONS OF THIS PARAGRAPH WILL EXPRESSLY SURVIVE THE CLOSING. NOTWITHSTANDING THE FOREGOING, THE PARTIES ACKNOWLEDGE AND AGREE THAT NOTHING SET FORTH IN THIS AGREEMENT OR IN DOCUMENTS DELIVERED AT CLOSING SHALL AFFECT OR IMPAIR SELLER'S OBLIGATIONS UNDER THE TOWN INDEMNIFICATION AGREEMENT.

ARTICLE VIII - Representations and Warranties of Buyer

8.1. <u>Buyer's Representations</u>. Buyer represents and warrants to Seller that the following matters are true and correct as of the Effective Date and Buyer shall be deemed to re-certify such matters as of the Closing Date:

(a) Buyer is a Massachusetts municipality, duly organized, validly existing and in good standing under the laws of Commonwealth of Massachusetts.

(b) This Agreement has been duly authorized, executed and delivered by Buyer, is the legal, valid and binding obligation of Buyer, and, other than the Town Approvals (defined below) and compliance with UPA (defined below), no person whose consent is required for Buyer's execution of this Agreement or for Buyer to fulfill its obligations hereunder is under any legal disability that will adversely affect the enforceability of this Agreement.

(c) No petition in bankruptcy (voluntary or otherwise), assignment for the benefit of creditors, or petition seeking reorganization or arrangement or other action under Federal or State bankruptcy laws is pending against or contemplated by Buyer.

(d) All documents to be executed by Buyer which are to be delivered at Closing, will, at the time of Closing, be duly authorized, executed and delivered by Buyer, be legal, valid and binding obligations of Buyer and not violate, to Buyer's actual knowledge, any provision of any agreement or judicial order pertaining to the Property to which Buyer is a party or to which Buyer is subject.

For purposes of this Agreement and any document delivered at Closing, whenever the phrases "to Buyer's knowledge", or the "knowledge" of Buyer or words of similar import are used, they shall be deemed to refer to the current, actual, conscious knowledge only, and not any implied, imputed or constructive knowledge, without any independent investigation having been made or any implied duty to investigate, of Kristi Williams, the Town Manager. In no event shall such individual shall have any personal liability hereunder.

8.2 **Survival.** All covenants, obligations, representations and warranties and indemnities by the Buyer are intended to and shall remain true and correct as of the Closing, shall be deemed to be material, and shall survive the recordation of the Deed for a period of twelve (12) months (the "**Survival Period**"). Any covenants and conditions herein that must be operative after recordation of the Deed to be effective shall be so operative and shall not be deemed to have been merged in the Deed and shall survive the Closing.

ARTICLE IX - Seller's Interim Operating Covenants

9.1. **Operations.** Seller shall continue to operate, manage and maintain the Property through the Closing Date in the ordinary course of Seller's business and substantially in accordance with Seller's present practice, subject to ordinary wear and tear and further subject to Article XII of this Agreement. Notwithstanding the foregoing, Seller shall retain the right following the Effective Date to negotiate the terms and conditions of an early termination of the BSC Lease prior to its stated expiration date of February 29, 2024, which terms shall be in Seller's sole discretion.

9.2. **No Conveyances, Leases, Transfers, or the Like**. Seller shall not convey any interest in the Property to any third party, including any sales, leases, licenses, occupancy agreements (written or verbal) or other types of conveyances, transfers, or the like. However, additional mortgages shall be allowed by Seller, provided the same are discharged at or prior to the Closing Date, as set forth herein.

9.3 **No Conveyance**. Seller agrees that, until the date that is the earlier to occur of (a) the termination of this Agreement in accordance with the terms hereof, or (b) the closing date, Seller shall not convey any portion of the Seller Property (other than the Property) unless, as part of the sale, the purchaser expressly agrees to agrees to bound by and the terms of the Town Indemnification Agreement are included in the deeds so that the obligations that Seller owes to Buyer under said Town Indemnification Agreement passes on to the new owners.

ARTICLE X - Closing Conditions

10.1. Conditions to Obligations of Buyer. The obligations of Buyer under this Agreement to purchase the Property and consummate the other transactions contemplated hereby shall be subject to the satisfaction of the following conditions (individually or collectively, the "**Closing Conditions**") on or before the Closing Date, except as otherwise provided below or to the extent that any of such conditions may be waived by Buyer in writing at Closing.

(a) Representations, Warranties and Covenants of Seller. All representations and warranties of Seller in this Agreement shall be true and correct in all material respects as of the Closing Date, with the same force and effect as if such representations and warranties were made anew as of the Closing Date. To be clear, the foregoing is merely a condition to Buyer's obligation to close. Any changes to such representations disclosed by Seller must be acceptable to Buyer, and Seller shall have performed and complied in all material respects with all covenants and agreements required by this Agreement to be performed or complied with by Seller prior to the Closing Date.

(b) Town Approvals. Buyer shall have obtained the Town Approvals on or before thirty (30) days prior to Closing. The "**Town Approvals**" are defined as (a) a favorable by Westborough Town Meeting authorizing the Buyer to acquire the Property for the consideration and on the terms stated herein and appropriating sufficient funds for that purpose, and (b), if applicable, a favorable vote of Westborough residents of a so-called debt exclusion/Proposition 2½ ballot question. In the event that the Town Approvals are not obtained by the close of the October 16, 2023 Town Meeting, Buyer shall have the right (but not the obligation) to terminate this Agreement, without recourse, whereupon all rights and obligations of the parties hereunder shall cease except for those obligations stated herein to survive the termination.

(c) Indemnifications. Buyer and Seller shall have agreed to the terms of the Town Indemnification Agreement on the terms set forth in Section 7.1(d) and Seller shall provide Buyer with a certificate of insurance or policy, as may be requested by Buyer, evidencing that Buyer has been added as an additional insured under the Existing Environmental Policy.

(d) Uniform Procurement Act. All requirements of the Uniform Procurement Act ("**UPA**"), G.L. c. 40B, §16. with respect to acquisition of the Property, if applicable, shall have been satisfied, as evidenced by publication of the so-called "uniqueness determination" in the Central Register at least sixty (60) days prior to Closing and no objections having been filed which cannot be eliminated within the cure periods provided to Buyer herein.

(e) REA. Buyer and Seller shall have agreed upon the terms of the REA.

(f) Relocation Waiver. Seller hereby waives any rights Seller may have to relocation benefits under the provisions of M.G.L. c. 79A.

(g) Possession Of The Property. Delivery by Seller of possession of the Property free and clear of tenants and other occupants, in a "broom-clean" condition and free of personal property, debris and other materials and in a condition required under the terms of this Agreement.

(h) Hazardous Materials. There shall have been no release or threat of release of any Hazardous Materials in violation of applicable law for the period following the Effective Date.

(i) Title to Property. The Seller shall deliver title to the Property in the condition required herein, subject to Permitted Exceptions and free of Voluntary Liens.

(j) Ongoing Obligations. There shall be no new Order of Conditions, environmental order, permit, approval, or license binding on the Property after the date of this Agreement that requires any expenditure of funds by the Buyer or places on Buyer any obligations or liabilities.

(k) Survey. Buyer shall have approved the Survey prepared by Seller of the Property, which Property shall be at the same location and have the same area as the Property shown on **Exhibit A**.

10.2. Failure/Waiver of Conditions Precedent.

(a) Waiver of Condition. The Closing Conditions described in Section 10.1 are for the benefit of Buyer, and Buyer shall be entitled to waive any or all of the Closing Conditions. If Buyer shall proceed with the Closing despite the failure of any Closing Condition, then Buyer shall be deemed to have waived and released any rights or remedies which it might have with respect to such failure.

(b) Time to Cure, Termination. If any Closing Condition set forth in this Section 10.1 or any other condition stated in this Agreement is not satisfied as of the Closing Date, Buyer shall elect, and Seller shall approve, to extend the Closing for a reasonable period of time (not to exceed sixty (60) days) during which the Parties shall use good faith and diligent efforts to satisfy said condition. If the Closing Condition is not satisfied by the extended Closing Date, Buyer may, in its sole and absolute discretion, waive such Closing Condition or terminate this Agreement by written notice to Seller. Notwithstanding the foregoing, if the Closing Condition set forth in Section 10.1(b) is not satisfied, Buyer shall have the right to terminate this Agreement, as set forth in said Section 10.1(b), at any time prior to the Closing Date). This Section 10.2 shall survive the Closing.

ARTICLE XI - Closing

11.1. Buyer's Closing Obligations. Buyer, at its sole cost and expense, shall deliver or cause to be delivered to Seller at Closing the following, duly executed by Buyer and acknowledged, as applicable:

(a) The Purchase Price, after all adjustments are made at the Closing as herein provided, by wire transfer or other immediately available federal funds, which amount shall be received in escrow by the Title Company at or before 10:00 a.m. on the Closing Date Boston, Massachusetts time.

(b) A general assignment substantially in the form attached hereto as **Exhibit C** (the "**General Assignment**").

(c) The fully executed REA.

(d) A settlement statement showing the Purchase Price and all prorations and adjustments made by the Parties in accordance with the terms and conditions of this Agreement, which settlement statement shall be in a form and substance reasonably satisfactory to Seller and Buyer (the "**Settlement Statement**").

(e) A certificate duly executed by Buyer certifying that all of the representations and warranties of Buyer set forth in Section 8.1 of this Agreement are true and correct in all material respects and remade on and as of the Closing Date.

(f) Any additional documents that the Title Company may reasonably require Buyer to deliver for the proper consummation of the transaction contemplated by this Agreement, provided, however, that Buyer shall not be required to execute any such additional document that imposes any additional obligation or liability on Buyer.

(g) A counter-signed Town Indemnification Agreement.

11.2. Seller's Closing Obligations. Seller, at its sole cost and expense, shall deliver or cause to be delivered to Buyer the following, duly executed by Seller and acknowledged, as applicable:

(a) A Massachusetts Quitclaim Deed (the "**Deed**").

(b) The fully executed REA.

(c) The General Assignment.

(d) A certificate certifying that Seller is not a "foreign person" as defined in Section 1445 of the Internal Revenue Code of 1986, as amended.

(e) A certificate duly executed by Seller certifying that all of the representations and warranties of Seller set forth in Section 7.1 of this Agreement are true and correct in all material respects and remade on and as of the Closing Date ("**Seller's Bring-Down Certificate**"); provided, however, that (subject to the provisions of Section 7.3) if any of such representations and warranties have changed since the Effective Date, then Seller shall revise such representations and warranties to conform to the changed circumstances and shall set forth such changed representations and warranties in such certificate. Seller acknowledges that, if Seller shall deliver a Seller's Bring-Down Certificate that fails to recertify one or more of such representations or warranties or that revises such representations and warranties, then Buyer shall have the rights and remedies set forth in Section 7.3.

(f) A customary title affidavit reasonably acceptable to Seller and such evidence or documents as may be reasonably required by the Title Company relating to and sufficient to delete any exceptions for the status and capacity of Seller and the authority of the individuals who are executing the various documents on behalf of Seller in connection with the sale of the Property.

(g) A transfer of the fee interest in the Improvements and an assignment of any and all permits, approvals, licenses relating to the Property and any warranties or guarantees applicable to the Improvements.

(h) Any additional documents that the Title Company may reasonably require Seller to deliver for the proper consummation of the transaction contemplated by this Agreement, provided, however, that Seller shall not be required to execute any such additional document that imposes any additional obligation or liability on Seller.

(i) A counter-signed Town Escrow Agreement and evidence showing that Buyer has been made an additional insured to the Existing Environmental Policy.

(j) A Disclosure of Beneficial Interest in Real Estate form, as required by G.L. c. 7C, §38.

(k) A 1099S form.

(l) A signed Settlement Statement.

(m) A counter-signed Town Indemnification Agreement.

ARTICLE XII - Risk of Loss

12.1. <u>Condemnation and Casualty</u>. If, prior to the Closing Date, all or any portion of the Property is taken by condemnation or eminent domain or is the subject of a pending taking which has not been consummated (a "**Condemnation**") that is not by or on behalf of Buyer, or the Property and/or the Improvements are destroyed or damaged by fire or other casualty (a "**Casualty**"), Seller shall notify Buyer of such fact promptly after Seller obtains knowledge thereof. If such Condemnation or Casualty is "**Material**" (as hereinafter defined), Buyer shall have the option to terminate this Agreement upon notice to Seller given not later than ten (10) business days after receipt of Seller's notice. If this Agreement is so terminated, then neither Seller nor Buyer shall have any further rights or obligations to the other hereunder except with respect to the Surviving Termination Obligations, if any. If this Agreement is not terminated, Seller shall not be obligated to repair any damage or destruction but (a) Seller shall assign, without recourse, and turn over to Buyer all of the insurance proceeds or condemnation proceeds, as applicable, (or, if such have not been awarded, all of its right, title and interest therein) payable with respect to such Casualty or condemnation, and (b) the Parties shall proceed to Closing pursuant to the terms hereof without abatement of the Purchase Price except for a Purchase Price credit in the amount of the applicable insurance deductible, if any.

12.2. <u>Condemnation Not Material</u>. If the Condemnation is not Material, then the Closing shall occur without abatement of the Purchase Price and Seller shall assign, without recourse, all awards or any rights to collect awards to Buyer on the Closing Date.

12.3. <u>Casualty Not Material</u>. If the Casualty is not Material, then the Closing shall occur without abatement of the Purchase Price except for a Purchase Price credit in the amount of the applicable deductible and any damage from such Casualty not covered by the insurance proceeds and Seller shall not be obligated to repair such damage or destruction and Seller shall assign and turn over to Buyer all of the insurance proceeds net of any reasonable (i) costs of repairs, and (ii) collection costs (or, if such have not been awarded, all of its right, title and interest therein) payable with respect to such Casualty and credit the Purchase Price with the amount of any applicable insurance deductible.

12.4. Materiality. For purposes of this Article XII, with respect to a Condemnation, the term "**Material**" shall mean a taking that is not by or on behalf of Buyer and that (i) causes the value of the Property to decrease by greater than $25,000.00, as reasonably estimated by Buyer, or (ii) without implying that the following would not also qualify under subpart (i) above, results in the loss of, or material impediment to access to the Property or the use the Property for the purposes set forth herein. For purposes of this Article XII, with respect to a Casualty, the term "**Material**" shall mean any Casualty such that the cost to make such repairs as are necessary to cause the Property to be in a reasonably safe condition, as reasonably estimated by a neutral third-party engineer, is in excess of $25,000.00.

ARTICLE XIII - Termination

13.1. Remedies of Buyer upon Seller Default. In the event that Seller fails to convey the Property to Buyer in accordance with this Agreement with all conditions precedent to Buyer's performance under Section 10.1(a) and Section 10.1(d) having been timely satisfied, Buyer may elect, in accordance with the terms of this Agreement and in its sole and absolute discretion, to (a) terminate this Agreement, in which case, without limiting the foregoing termination right, Seller shall reimburse Buyer for any and all reasonable costs, expenses, demands and/or liabilities (including reasonable attorneys' fees) paid or incurred by Buyer in performing due diligence and drafting, negotiating, entering into and enforcing its rights under this Agreement, and in the event Buyer so terminates this Agreement and is paid its fees, Seller shall not have any other liability whatsoever to Buyer hereunder except with respect to the Surviving Termination Obligations, if any, or (b) enforce specific performance of Seller's obligations, provided that Buyer files a specific performance action against Seller within ninety (90) days from the Closing Date. Notwithstanding the foregoing, nothing contained in this Agreement shall limit Buyer's remedies at law or in equity, (x) as to the Surviving Termination Obligations, if any, and/or (y) if Seller's default hereunder constitutes intentional fraud or Seller has conveyed the Property to another party in violation of the terms of this Agreement. The provisions of this section shall survive the termination of this Agreement. With respect to the reimbursement of Buyer's costs under subsection (a) above, Buyer shall be obligated to provide reasonable backup documentation in support thereof and such costs shall be capped at $50,000.00.

13.2. Remedies of Seller upon Buyer Default. In the event that Buyer fails to purchase the Property notwithstanding the satisfaction of the conditions set forth in this Agreement, this Agreement shall terminate and, without limiting the foregoing termination right, Buyer shall reimburse Seller, subject to G.L. c. 44, §31, for all reasonable out-of-pocket and documents costs, expenses, first floor fit-up costs and costs and expenses (including reasonable attorneys' fees) actually paid or incurred by Seller in negotiating, entering into, and enforcing its rights under this Agreement, and in the event Seller is paid its fees, Buyer shall not have any other liability whatsoever to Seller hereunder except with respect to Surviving Termination Obligations, if any. Upon termination of this Agreement, neither Seller nor Buyer shall have any further rights or obligations hereunder except with respect to the Surviving Termination Obligations, if any. Notwithstanding the foregoing, nothing contained herein shall limit Seller's remedies at law or in equity, as to the Surviving Termination Obligations. With respect to the reimbursement of Seller's costs under subsection (a) above, Seller shall be obligated to provide reasonable backup documentation in support thereof and such costs shall be capped at $25,000.00.

ARTICLE XIV - Brokers

Buyer and Seller each represents and warrants to the other that it has not dealt with any person or entity entitled to a brokerage commission, finder's fee or other compensation with respect to the transaction contemplated hereby. Buyer hereby agrees, to the extent permitted by law, to indemnify, defend, and hold Seller harmless from and against any losses, damages, costs, and expenses (including, but not limited to, attorneys' fees and costs) incurred by Seller by reason of any breach or inaccuracy of the Buyer's representations and warranties contained in this Article XIV. Seller hereby agrees to indemnify, defend, and hold Buyer harmless from and against any losses, damages, costs and expenses (including, but not limited to, attorneys' fees and costs) incurred by Buyer by reason of any breach or inaccuracy of Seller's representations and warranties contained in this Article XIV. Seller and Buyer agree that it is their specific intent that no broker shall be a party to or a third party beneficiary of this Agreement, that no broker shall have any rights or cause of action hereunder, and further that the consent of a broker shall not be necessary to any agreement, amendment, or document with respect to the transaction contemplated by this Agreement. The provisions of this Article XIV shall survive the Closing and/or termination of this Agreement.

ARTICLE XV - Miscellaneous

15.1. Notices. All notices, demands, requests or other communications required to be given or which may be given hereunder shall be in writing and shall be sent by (a) national overnight delivery service, (b) e-mail transmission on or before 5:00 p.m. on a business day or (c) personal delivery, addressed as follows:

To Buyer:
Town of Westborough
34 West Main Street
Westborough, MA 01581
Attn: Town Manager
Email: Kristi Williams

With a copy to:
Shirin Everett, Esq.
KP Law, P.C.
101 Arch St.
Boston, MA 02110
Email: severett@k-plaw.com

To Seller:
BSC RE OWNER, LLC
c/o Grossman Development Group, LLC
405 Cochituate Road, Suite 302
Framingham, MA 01701

With a copy to: Thomas W. Tavenner, Jr., Esq.
Dalton & Finegold, LLP
34 Essex Street
Andover, MA 01810

To Title Company: Marsh, Moriarty, Ontell & Golder, P.C.
99 Rosewood Drive, Suite 220
Danvers, MA 01923
Attn: Richard Golder, Esq.
Email: rgolder@mmoglaw.com

15.2. Governing Law. This Agreement shall be governed by and construed in accordance with the internal, substantive laws of the Commonwealth of Massachusetts, and any disputes shall be brought within the courts of said state (or, if applicable, a federal court within said state), without regard to the conflict of laws principles thereof.

15.3. Headings. The captions and headings herein are for convenience and reference only and in no way define or limit the scope or content of this Agreement or in any way affect its provisions.

15.4. Effective Date. This Agreement shall be effective upon delivery of this Agreement fully executed by Seller and Buyer, which date shall be deemed the Effective Date hereof. Either Party may request that the other Party promptly execute a memorandum specifying the Effective Date.

15.5. Business Days. If any date herein set forth for the performance of any obligations of Seller or Buyer or for the delivery of any instrument or notice as herein provided should be on a Saturday, Sunday or legal holiday, the compliance with such obligations or delivery shall be deemed acceptable on the next business day following such Saturday, Sunday or legal holiday. As used herein, the term “legal holiday” means any state or Federal holiday for which financial institutions or post offices are generally closed in the state where the Property is located, or the Registry of Deeds in the county where the Property is located is closed.

15.6. Counterparts, Etc. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which when taken together shall constitute one fully executed original Agreement, binding upon the Parties hereto, notwithstanding that all of the Parties hereto may not be signatories to the same counterpart. Additionally, telecopied, DocuSigned or e-mailed signatures may be used in place of original signatures on this Agreement. Seller and Buyer shall be bound by the signatures on the telecopied, DocuSigned, or e-mailed document, are aware that the other Party will rely on the telecopied, DocuSigned, or e-mailed signatures, and hereby waive any defenses to the enforcement of the terms of this Agreement based on the form of signature.

15.7. Binding Effect. This Agreement shall be binding upon, and inure to the benefit of, the Parties hereto and their respective successors and assigns. Whenever reference is made in this Agreement to Seller or Buyer, such reference shall include the successors and assigns of such Party under this Agreement.

15.8. Interpretation. This Agreement shall not be construed more strictly against one Party than against the other merely by virtue of the fact that it may have been prepared by counsel for one of the Parties, it being recognized that both Seller and Buyer have contributed substantially and materially to the preparation of this Agreement.

15.9. Entire Agreement. This Agreement and the exhibits attached hereto contain the final and entire agreement between the Parties hereto with respect to the sale and purchase of the Property and are intended to be an integration of all prior negotiations and understandings. Buyer, Seller. and their agents shall not be bound by any terms, conditions, statements, warranties or representations, oral or written, not contained herein. No change or modifications to this Agreement shall be valid unless the same is in writing and signed by the Parties hereto. Each Party reserves the right to waive any of the terms or conditions of this Agreement which are for their respective benefit and to consummate the transaction contemplated by this Agreement in accordance with the terms and conditions of this Agreement which have not been so waived. Any such waiver must be in writing signed by the Party for whose benefit the provision is being waived.

15.10. Severability. If any one or more of the provisions hereof shall for any reason be held to be invalid, illegal or unenforceable in any respect, such invalidity, illegality. or unenforceability shall not affect any other provision hereof, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein.

15.11. Survival. Except for those rights and obligations under this Agreement which by their terms expressly survive the termination of this Agreement (collectively, the **"Surviving Termination Obligations"**), the provisions of this Agreement shall not survive after the conveyance of title and payment of the Purchase Price but be merged therein. Every obligation under this Agreement that by its nature is to be performed post-Closing shall survive the Closing, even if not expressly stated elsewhere in this Agreement.

15.12. Exhibits. All exhibits attached hereto are incorporated herein by reference.

15.13. Time. Time is of the essence in the performance of each of the Parties' respective obligations contained herein.

15.14. Limitation of Liability. In no event shall either Party be liable for any indirect, consequential, special, and/or punitive damages.

15.15 Escrow Agreement.

(a) Instructions. Buyer and Seller each shall promptly deposit a copy of this Agreement executed by such Party (or either of them shall deposit a copy executed by both Buyer and Seller) with the Title Company, and, upon receipt of this Agreement (executed by Buyer and Seller), the Title Company shall immediately execute this Agreement where provided below. The Parties agree to execute the Title Company's standard form of escrow agreement if so requested by the Title Company, subject to such changes as the Title Company and the Parties hereto may agree (each acting reasonably), and to the extent, if any, that such escrow agreement gives the Title Company greater rights and protections than are set forth in **Exhibit D** hereto, the provisions of such escrow agreement shall control. This Agreement and **Exhibit D**, and such Title Company standard form of escrow agreement if applicable, together with such further instructions, if any, as the Parties shall provide to the Title Company by written agreement, shall constitute the escrow instructions. If any requirements relating to the duties or obligations of the Title Company hereunder are not acceptable to the Title Company, or if the Title Company requires additional instructions, the Parties hereto agree to make such deletions, substitutions and additions hereto as counsel for Buyer and Seller shall mutually reasonably approve, which additional instructions shall not substantially alter the terms of this Agreement unless otherwise expressly agreed to by Seller and Buyer.

(b) Real Estate Reporting Person**.** The Title Company is hereby designated the "real estate reporting person" for purposes of Section 6045 of Title 26 of the United States Code and Treasury Regulation 1.6045-4 and any instructions or settlement statement prepared by the Title Company shall so provide. Upon the consummation of the transaction contemplated by this Agreement, the Title Company shall file Form 1099 information return and send the statement to Seller as required under the aforementioned statute and regulation. Seller and Buyer shall promptly furnish their federal tax identification numbers to the Title Company and shall otherwise reasonably cooperate with the Title Company in connection with the Title Company's duties as real estate reporting person.

15.16. **No Recording.** Neither this Agreement nor any memorandum or short form hereof shall be recorded or filed in any public land or other public records of any jurisdiction, by either Party and any attempt to do so may be treated by the other Party as a breach of this Agreement.

15.17. **Waiver of Trial by Jury.** The respective Parties hereto shall and hereby do waive trial by jury in any action, proceeding or counterclaim brought by either of the Parties hereto against the other on any matters whatsoever arising out of or in any way connected with this Agreement, or for the enforcement of any remedy under any statute, emergency or otherwise.

15.18. **Extensions**. Buyer and Seller hereby authorize their respective attorneys (as the case may be) to execute on their behalf any extensions to the time for performance and any change of location and/or time for delivery of the deed. Buyer and Seller shall be able to rely upon the signature of said attorneys as binding unless they have actual knowledge before the execution or other consent to such extensions, that either Party has disclaimed the authority granted herein to bind them.

15.19. **Errors**. If any errors or omissions are found to have occurred in any calculations or figures used in the Settlement Statement signed by the Parties (or would have been included if not for any such error or omission) and notice thereof is given within six (6) months from the date of delivery of the deed to the Party to be charged, then such Party agrees to make payment to correct the error or omission.

[SIGNATURES ON FOLLOWING PAGES]

IN WITNESS WHEREOF, the parties hereto have executed this Agreement under seal on the date set forth above.

SELLER:

BSC RE OWNER LLC

By: Howard D Grossman
Name: Howard D. Grossman
Title: Manager

By: ____________________
Name: Mark R. Reardon
Title: Manager

BUYER:

TOWN OF WESTBOROUGH,
By its Select Board

____
Sean Keogh, Chair

____
Patrick Welch, Vice-Chair

____
Shelby Marshall, Member

____
Ian Johnson, Member

____
Allen Edinberg, Member

IN WITNESS WHEREOF, the parties hereto have executed this Agreement under seal on the date set forth above.

<u>SELLER</u>:

BSC RE OWNER LLC

By:____________________________
Name: Howard D. Grossman
Title: Manager

By: ____________________________
Name: Mark R. Reardon
Title: Manager

<u>BUYER</u>:

TOWN OF WESTBOROUGH,
By its Select Board

Sean Keogh, Chair

Patrick Welch, Vice-Chair

Shelby Marshall, Member

Ian Johnson, Member

Allen Edinberg, Member

882525/WBOR/0048

TITLE COMPANY JOINDER

The Title Company hereby executes this Agreement for the sole purpose of acknowledging its responsibilities hereunder and to evidence its consent to serve as the Title Company in accordance with the terms of this Agreement.

TITLE COMPANY:

MARSH, MORIARTY, ONTELL & GOLDER, P.C.

By:____
Name:
Title:

Date: October 10, 2023

LIST OF EXHIBITS

EXHIBIT A

SKETCH PLAN

EXHIBIT B

DUE DILIGENCE DOCUMENTS
TO BE DELIVERED BY SELLER

1. Any ALTA or other surveys of the Property.
2. Seller's existing title policy, if any.
3. Any and all environmental reports in Seller's possession or under its reasonable control.
4. All Assigned Property under the terms of the General Assignment, meaning, all guarantees, licenses, approvals, certificates, permits and warranties relating exclusively to the Property, if any, but only to the extent the same are not (i) recorded, (ii) on file with Buyer (including any department, board or subdivisions thereof) or (iii) otherwise available to the public.

EXHIBIT C

GENERAL ASSIGNMENT

THIS GENERAL ASSIGNMENT (the "General Assignment") is made as of the ______ day of _____________, 2024, by: (i) BSC RE Owner LLC ("Seller"), a Massachusetts limited liability company, having an address of 405 Cochituate Road, Suite 302, Framingham, MA 01701, and (ii) the Town of Westborough ("Buyer"), a Massachusetts municipal corporation, having an address of 34 West Main Street, Westborough, Massachusetts 01581.

KNOW ALL MEN BY THESE PRESENTS:

Concurrently with the execution and delivery hereof, pursuant to a certain Agreement of Purchase and Sale dated October 10, 2023 (the "Agreement") between Seller and Buyer, Seller is conveying to Buyer all of Seller's right, title and interest in and to the real property described on Exhibit A attached hereto and made a part hereof (the "Land") and in and to any improvements located on the Land (collectively, the "Improvements") located thereon. The Land and the Improvements are hereinafter sometimes collectively referred to as the "Property."

It is the desire of Seller to hereby sell, assign, transfer, and convey to Buyer all of Seller's right, title and interest in and to the Assigned Property (as hereinafter defined).

1. Bill of Sale and Assignment. Seller does hereby sell, assign, transfer, and convey to Buyer, its successors and assigns, without representation or warranty of any kind and subject to the provisions of Section 7.1 of the Agreement, all right, title and interest of Seller in and to the guarantees, licenses, approvals, certificates, permits and warranties relating exclusively to the Property, to the extent assignable, but expressly (collectively, the "Assigned Property").

2. Assumption/Indemnity. Buyer accepts the foregoing assignment and assumes and agrees to be bound by and to perform and observe all of the obligations, covenants, terms and conditions to be performed or observed under the Assigned Property arising on or after the date hereof. Seller agrees to defend, indemnify and hold Buyer harmless from and against any and all claims, liens, damages, demands, causes of action, liabilities, lawsuits, judgments, losses, costs and expenses (including, without limitation, reasonable attorneys' fees and expenses) (collectively, the "Losses") asserted against or incurred by Buyer by reason of or arising out of any failure by Seller to perform or observe the obligations, covenants, terms and conditions under the Assigned Property and related to the period prior to the date hereof and during Seller's period of ownership.

3. Exclusions from Personal Property. It is hereby acknowledged by the Parties that the Assigned Property shall not include claims relating to any real property tax refunds or rebates for periods accruing prior to the date hereof, which claims are hereby reserved by Seller.

4. Counterparts, Etc. This General Assignment may be executed in counterparts, each of which shall be deemed an original and all of which when taken together shall constitute one fully executed original Agreement, binding upon the Parties hereto, notwithstanding that all of the Parties hereto may not be signatories to the same counterpart. Additionally, telecopied,

DocuSigned or e-mailed signatures may be used in place of original signatures on this General Assignment. Seller and Buyer shall be bound by the signatures on the telecopied, DocuSigned or e-mailed document, are aware that the other Party will rely on the telecopied, DocuSigned or e-mailed signatures, and hereby waive any defenses to the enforcement of the terms of this General Assignment based on the form of signature.

[signatures on following page]

IN WITNESS WHEREOF, the Parties have caused this General Assignment to be executed as of the date first written above.

<u>SELLER</u>:

BSC RE Owner LLC

By:__________________________________
Name: Mark R. Reardon
Title: Manager

By: __________________________________
Name: Howard D. Grossman
Title: Manager

<u>BUYER</u>:

Town of Westborough,
By its Select Board

____
Sean Keogh, Chair

____
Patrick Welch, Vice-Chair

____
Shelby Marshall, Member

____
Ian Johnson, Member

____
Allen Edinberg, Member

EXHIBIT D

<u>ADDITIONAL ESCROW PROVISIONS</u>

By executing the Agreement to which this **<u>Exhibit D</u>** is attached, Buyer and Seller hereby acknowledge and agree that:

(a) The Title Company shall incur no liability whatsoever in connection with its good faith performance under <u>Article III</u> and <u>Section 15.16</u> of the Agreement or this **<u>Exhibit D</u>**, and do hereby jointly and severally release and waive any claims Buyer or Seller may have against the Title Company, which may result from its performance in good faith of its function under this Agreement, including but not limited to, a one (1)-business day delay in the electronic wire transfer of funds. The Title Company shall be liable only for loss or damage caused directly by its acts of negligence while performing as the Title Company under this Agreement.

(b) The Title Company undertakes to perform only those duties which are expressly set forth in the Agreement, and Buyer and Seller acknowledge that these duties are purely ministerial in nature.

(l) The Title Company shall be entitled to rely upon the authenticity of any signature and the genuineness and validity of any writing received by the Title Company relating to this Agreement. The Title Company may rely upon any oral identification of a Party notifying the Title Company orally as to matters relating to this Agreement if such oral notification is permitted thereunder. The Title Company is not responsible for the nature, content, validity or enforceability of any of the escrow documents except for those documents prepared by the Title Company.

(ii) In the event of any disagreement between the Parties hereto resulting in conflicting instructions to, or adverse claims or demands upon the Title Company with respect to the release of any escrow funds or any escrow documents, the Title Company may refuse to comply with any such instruction, claim or demand so long as such disagreement shall continue and in so refusing the Title Company shall not release any escrow funds or any escrow documents. The Title Company shall not be, or become liable in any way for its failure or refusal to comply with any such conflicting instructions or adverse claims or demands and it shall be entitled to continue to refrain from acting until such conflicting instructions or adverse claims or demands (i) shall have been adjusted by agreement and it shall have been notified in writing thereof by the Parties hereto; or (ii) shall have finally been determined in a court of competent jurisdiction. In the alternative, the Title Company may, but shall not be obligated to, file a suit in interpleader for a declaratory judgment for the purpose of having the respective rights of the claimants adjudicated and may deliver to the court any escrow funds or any escrow documents.

(iii) The Title Company shall be entitled to receive reimbursement as the Title Company of documented reasonable attorneys' fees and other documented out-of-pocket expenses incurred by it in the performance of its duties under this Agreement, which shall be paid in equal amounts by Buyer and Seller. If the Title Company's duties and responsibilities are increased beyond those contemplated within this Agreement, additional compensation will be allowed as agreed upon in writing by all the parties hereto. Such additional compensation shall be shared equally by Buyer and Seller Buyer.

(iv) The Title Company may at its sole discretion resign by giving (30) days written notice thereof to the Parties hereto. The Parties shall furnish to the Title Company written instructions for the release of any escrow funds or any escrow documents. If the Title Company shall not have received such written instructions within such thirty (30) day period, the Title Company may petition any court of competent jurisdiction for the appointment of a successor escrow agent and upon such appointment deliver any escrow funds and any escrow documents to such successor. Costs and fees incurred by the Title Company may, at the option of the Title Company, be deducted from any funds held pursuant hereto. The Title Company neither approves nor disapproves of this transaction, nor does it recommend for or against, nor does it have an opinion as to the legality or validity of this transaction.

(v) If any escrow funds are at any time attached, garnished, or levied upon under any court order or if the payment or delivery of any escrow funds is stayed or enjoined by any court order, or if any order, judgment or decree shall be made or entered by any court affecting escrow funds, the Title Company is authorized, in its sole discretion, to rely upon and comply with the order, writ, judgment or decree. The Title Company shall not be liable to any of the Parties or to any other person, firm, or corporation by reason of such compliance even though the order, writ, judgment or decree may be subsequently reversed, modified, annulled, set aside or vacated.

(vi) Upon making disposition of any escrow funds in accordance with this Agreement, the Title Company shall be deemed fully released and discharged from any and all duties and obligations under this Agreement, without the need that any other documentation be executed by Seller or Buyer.

(vii) The Title Company shall not be responsible for (i) any fluctuations in the interest rate applicable to any cash held by it pursuant to or by virtue of this Agreement; or (ii) the validity, sufficiency, collectability, or legal effect of any instrument deposited with Title Company.

(viii) Buyer and Seller are aware that the Federal Deposit Insurance Corporation ("**FDIC**") coverages apply only to a cumulative maximum amount of $100,000 for each individual deposit for all of depositor's accounts at the same or related institution. The Parties hereto further understand that certain banking instruments such as, but not limited to, repurchase agreements and letters of credit are not covered at all by FDIC insurance. Further the Parties hereto understand that the

Title Company and the Seller assume no responsibility for, nor will the Parties hereto hold the Title Company liable for, any loss occurring which arises from the fact that the amount of the above account may cause the aggregate amount of any individual depositor's accounts to exceed $100,000 and that the excess amount is not insured by the Federal Deposit Insurance Corporation or that FDIC insurance is not available on certain types of bank instruments.